Ohio Proposed Child Support and Protection Act

Sponsor Brief

Four Pillars

I. Both parents have full default custody.
II. Child support goes to supporting the child.
III. A court order may be modified only by a subsequent court order.
IV. Expansion of parenting support services to include enforcement for court-ordered parenting time.

I. Both parents have custody by default

Problem: An unmarried father with legally established paternity has no custodial status until he sues for it; the mother is sole custodian by statute.[1] In every case, Ohio law defaults to sole custody unless a parent files a shared-parenting plan.[2]

Solution: Once established, both parents have equal legal status. At the first custody decision, the court starts from shared parenting with at least 45 percent of the time for each parent. That starting point gives way to endangerment, a parent's inability or unwillingness, distance or school, denial of the other parent's time, or the reasoned preference of a child 12 or older.

Foundation: *Ohio already declares that divorcing parents "stand upon an equality."*[3] *Kentucky (2018), Arkansas (2021), West Virginia (2022), Florida (2023), and Missouri (2023) have enacted equal-parenting presumptions.*[4]

II. Child support benefits the child

Problem: Ohio's child-support enforcement system is partially self-funded, including through a mandatory 2% processing charge on support payments that helps fund CSEA administration. Support orders generally state one undifferentiated amount, with no ordinary procedure for determining whether money designated for specific child expenses actually benefits the child.

Solution: Divide support into *parental support* for ordinary household expenses, with no accounting, and accountable *child support* for designated child expenses. A parent may request an accounting of where support was spent. No receipts or itemized purchases are required.

Foundation: *Ohio already separately calculates certain child-specific expenses, including child care. Federal law recognizes support for both the child and the household maintaining the child. Ohio law imposes the 2% processing charge and provides for processing-charge revenue to fund CSEA administration. Louisiana law provides precedent for child-support accounting.*

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[1] R.C. 3109.042(A).
[2] R.C. 3109.04(A)(1)–(2), (D)(1), (G).
[3] R.C. 3109.03.
[4] KRS 403.270(2); Ark. Code 9-13-101; W.Va. Code 48-9-102a; Fla. Stat. 61.13(2)(c); RSMo 452.375. Prior Ohio proposals: H.B. 508 (134th G.A.); H.B. 14 (135th G.A.).

III. A court order remains until the parents agree otherwise or a court changes it

Problem: In practice, GALs, parenting coordinators, therapists, and agencies can end up controlling parenting time. Orders often tie a parent's time to a non-judge's approval.[5]

Solution: These professionals may investigate, recommend, mediate, and help carry out an order. They may not reduce, suspend, supervise, condition, or substantively change parenting time or status. A GAL's recommendation is evidence, and the GAL may be cross-examined.

Foundation: Ohio's court rules already say GAL reports "shall not be considered determinative" and bar coordinators from "substantive changes in parenting time."[6] Ohio appellate courts hold that a court "may not delegate judicial authority to another entity absent the color of authority".

IV. Domestic court orders must be enforceable

Problem: A parent denied court-ordered time must file contempt alone, with no agency help and no hearing deadline, and make-up time is discretionary.[7]

Solution: The county child support agency, also designated the Family Support Enforcement Agency (FSEA), takes free complaints, obtains the order, hears both parents, and decides within 45 days. The remedy is make-up time of the same type and duration, plus a record of the denial. Repeated or serious denials go to the prosecutor and to contempt. Either parent may object to a judge, and a parent may always go straight to court.

Foundation: Ohio already uses this "agency determines, court enters unless a party objects within 14 days" model for support reviews and administrative paternity.[8] Michigan's Friend of the Court acts on parenting-time complaints and applies same-type, same-duration make-up time.[9]

How the Act Works

Four pillars support one another: (1) Equal status gives each parent a real starting point, (2) Reduced fees ensures more money reaches the child, (3) Court-only changes make the order mean what it says, (4) Practical enforcement means a motion with a lawyers does not need to be filed for every missed weekend. A parent may demand a hearing within 90 days, and a restriction based on an undecided allegation ends after 36 months, with a 45-day extension available. Knowingly false allegations, proven by clear and convincing evidence, carry consequences, while honest reports are protected. The Act amends nine sections and enacts five, using existing Ohio agencies, procedures, and statutes wherever possible.

[5] See *In re K.R.H.*, 2026-Ohio-583 (2d Dist.) (reversing an order leaving a father's time to a therapist's discretion).
[6] Sup.R. 8.06(A)(3); Sup.R. 6.42(B).
[7] R.C. 2705.031(B)(2); R.C. 3109.051(K).
[8] R.C. 3119.63–.65; R.C. 3111.49.
[9] MCL 552.511b, 552.642; compare Minn. Stat. 518.1751.